

		Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 796.) Plaintiff violated the Court's 12-30-25 Order compelling Plaintiff to appear for her deposition by no later than 1/30/26. (Canale Decl., ¶ 3, Ex. A; ROA 170.) Based on Plaintiff's email stating Plaintiff was available on any day except 1/13/25, Defendant noticed Plaintiff's deposition for 1/16/26. (Canale Decl., ¶¶ 4-5, Exs. B-C.) However, Plaintiff failed to appear for her deposition. (Canale Decl., ¶ 6, Ex. D.) The moving party must not only show that there was violation of the court's order, but that such violation was willful. (<i>Doppes, supra</i>, 174 Cal.App.4th at 992.) Although Defendant has shown Plaintiff failed to comply with the Court's 12-30-25 Order, there is no showing that the violation was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate at this time. Court's Ruling: Defendant's request for terminating sanctions is DENIED. Sanctions: Defendant requests sanctions in the amount of \$2,573.70 calculated as follows: \$300/hr. x. 6.4hrs.; plus \$60 filing fee and \$653.70 for a Certificate of Non-Appearance. The amount requested is excessive and is reduced to \$1,313.70 (\$300/hr. x 2hrs. + \$60 filing fee + \$653.70).] Court's Ruling: Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$1,313.70. Plaintiff is ORDERED to pay \$1,313.70 in monetary sanctions to Defendant within 20 days' notice of this ruling. Plaintiff is ORDERED to comply with the Court's 12-30-25 Order and appear for her deposition within 20 days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions.
7	Juliar vs. Providence St. Jude Medical Center 2022-01280961	Defendant St. Jude Hospital's Motion to Tax Costs is GRANTED.

Motion to Tax Costs	Defendant moves to tax Plaintiffs' costs on appeal pursuant to California Rules of Court, rule 3.1700(b)(1), which provides: Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3). Here, Plaintiffs filed and served their memorandum of costs on appeal electronically on 6/24/26. (ROA 387.) Defendants timely filed and served the instant motion on 7/9/26. (ROA 392.) "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266; see <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 [party seeking to tax deposition of designated expert has burden to prove cost unnecessary at time incurred or unreasonable].) Once the opposing party makes such a showing in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (<i>Ibid.</i>) But conclusory assertions alone are not enough to cause this shift to happen. "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557; see also <i>Jones, supra</i>, 63 Cal.App.4th at p. 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing].) Here, Plaintiffs' memorandum of costs is verified by Plaintiffs' counsel, Ryan P. Mahoney. As such, the memorandum of costs is prima facie evidence of the propriety of the costs set forth therein. Defendant seeks to strike or tax Plaintiffs' memorandum of costs as follows: Item 1: Filing Fees: Plaintiffs claim \$1306.87 for filing fees. Defendant contends this appears excessive because the filing fee for a notice of appeal in a California civil case \$775. Defendant therefore contends the claimed amount
-----------------------------------	---

		should be reduced by \$531.84 for the amount that exceeds the filing fee of \$775. Item 3: Preparation of Reporter's Transcript: Plaintiffs claim \$1406.15 for the preparation of a reporter's transcript. Defendant contends this cost is improper because there was no court reporter at the hearing on the motion for summary judgment (the subject of the appeal) and Plaintiffs did not designate a reporter's transcript on appeal. Defendant therefore contends the entire amount Plaintiffs claim for this item should be stricken. Item 5: Production of Additional Evidence: Plaintiffs claim \$151.35 for production of additional evidence. Defendant contends there was no production of additional evidence on appeal; therefore, the entire amount Plaintiffs claim for this item should be stricken. The court finds Defendant has met its burden. Defendant has presented sufficient evidence to prove the claimed costs for items 1, 3 and 5 were not necessary or reasonable. Plaintiffs concede there was no report's transcript designated in this action and for purposes of the appeal. Plaintiffs explain they inadvertently included a reporter's transcript cost item due to a bookkeeping error. Plaintiffs do not specifically address Defendant's objections to items 1 and 5. Plaintiffs expressly state they do not oppose the motion. Therefore, the motion is granted.
8	Davis vs. Pfaffly 2022-01294841 Motion for Protective Orders Motion to Compel Further responses to Form Rogs Further responses to special rogs Compel Production Compel requests for admission	Motions 1-4: Plaintiff's Motions for Protective Order, filed on 4/30/36 under ROAs 215, 216, 217, and 218, are MOOT in light of Plaintiff's notice of withdrawal of the motions filed on 9/21/26. Motion No. 5: Defendant's Motion to Compel Plaintiff's Further Responses to Requests for Production, Set Two (RFPs), filed under ROA 293, is GRANTED. Defendant moves for an order compelling responses and documents regarding RFPs 32-52 and seeks sanctions of \$1,635.00. The RFPs generally seek documents supporting Plaintiff's contentions about the subject fire which Plaintiff alleges caused her damages.